

FARIDI v CARLSON, et al

25CV48053

PLAINTIFF'S MOTION TO REINSTATE STEVE CARLSON AS A DEFENDANT

Plaintiff Tariq Jamil Faridi ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendant Steve Carlson ("Defendant"). Now before the Court is Plaintiff's motion to reinstate Carlson as a defendant.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to

deny the motion.

Accordingly, the motions are **denied without prejudice to refile**. [The Court also notes this is the *second* motion filed by plaintiff that has been denied for failure to adhere to the local rules; plaintiff is cautioned further disregard for mandatory procedures may not be met with such leniency.]

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

DOWLING v ANDERSON, et al

25CV48290

DEFENDANTS' MOTION TO STRIKE PRAYER FOR PUNITIVE DAMAGES

This matter involves allegations of personal injuries stemming from a dog bite brought by Darren Dowling ("Plaintiff") against Carol R. Anderson ("Defendant.")

Defendant now moves to strike portions of the Complaint related to punitive damages. The motion is unopposed.

I. Background

On September 15, 2025, Plaintiff filed his complaint against Defendant alleging negligence and premises liability. According to Plaintiff, Defendant owns a "large white pit bull" who left Defendant's property through an unsecured gate and attacked Plaintiff. Plaintiff suffered a bite on his calf down to the bone, as well as severe injuries to his arms and hands.

II. Legal Standard and Discussion

A motion to strike lies either to strike: (1) any "irrelevant, false or improper matter inserted in any pleading"; or (2) any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP § 436.) A motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

Punitive damages are recoverable where a plaintiff proves "by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294.) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of rights or safety of others. (*Ibid.*)